IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No. 6

CP(CAA) No. 10/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:
Haldiram Snacks Pvt. Ltd. & Ors. ... Transferor Company

And

Haldiram Snacks Food Pvt. Ltd. ... Transferee Company

Under Section: 230-232

Order delivered on 02.01.2025

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:
For the Petitioner Company : Mr. AnandChhibbar, Senior Advocate with Mr. Nahush Jain & Ms. SirjanBedi Advocates

For the Income Tax Dept. : Mr. Saurabh Kapoor, Senior Standing Counsel

For the RD/RoC : Mr. Vineet Khatri, Company Prosecutor

ORDER

It is noted from the RD report at Para No.10 that RoC in its report mentioned that in case of Demerged Company No.1 and Demerged Company No.2 auditor has stated in their audit report for the FY ended 31.03.2023 that few immoveable properties are not in the name of the company and in Para No.11 of the RD report, it is mentioned that Petitioner Companies have replied that the OSE Infrastructure Ltd. which was a wholly owned subsidiary of the Demerged Company No.1 was amalgamated with it vide RD order dated 10.08.2021 and the transfer of the ownership is under process.

Similarly, Hariomkar Food Products Private Limited,which was 100% subsidiary of Demerged Company No.2 was amalgamated with it vide NCLT Mumbai order dated 29.03.2023 and the transfer of the ownership is under process. The Petitioner Companies were directed to submit on affidavit the status of transfer of the above immoveable in the name of Demerged Company No.1 & 2 and also clarify whether any of the above assets are getting transferred to the Resulting Company in the present Scheme of Arrangement.

With regard to RD observations regarding statutory dues and compliance of Section 185 and 186 of the Companies Act, 2013, it was submitted by the counsel of the Petitioner Companies that they have filed the audited financial statement for the year ended 31.03.2024, which will clarify the position. The Petitioner Companies were directed to furnish a copy of the above audited accounts to the RD/RoC and they are directed to furnish their revised view based on the above audited accounts and other material available with RD/RoC before the next date of hearing.

Learned counsel for petitioner companies is also directed to file an affidavit that the reduction of the share capital is in compliance of Section 66 of the Companies Act.

Let the matter be listed on 24.01.2025 in the Supplementary List.

Sd/-

(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

Sd/-

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

Atiqur Rehman
02.01.2025